

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BOSNIA AND HERZEGOVINA

Complete Community Opposition How-To

This guide uses the terms and tools you'll actually run into in Bosnia and Herzegovina — the environmental permit and the EIA, the consultation requirement, the courts, the Aarhus and Bern Conventions, the wider river-defence movement — and explains each in plain words the first time. Governance is split among entities and cantons, so always check which rules apply where you are.

INTRODUCTION & FRAMEWORK

In the summer of 2017, in the village of **Krušnica** in central Bosnia, an investor arrived with machines and a police escort to build two small hydropower plants on the little river that is the village's drinking water. The villagers blocked the bridge to the site. And then they did not leave. Women took the lead — the **Brave Women of Krušnica** — keeping watch from a wooden hut beside the bridge, day and night, in shifts, through the seasons; and when riot police came at dawn and cleared them by force, injuring and arresting them, they came back and stood guard again. For **more than five hundred days and nights** they held that bridge. And alongside the blockade, they took the permits to court and **won**: the environmental permit was annulled, and in December 2018 a court struck down the dam permits **for lack of proper consultation with the community**. Only then did the women leave the bridge. Two dams were stopped by a village that refused to move.

The Brave Women of Krušnica, who held their bridge for more than five hundred days, drew on tools available to communities across Bosnia and Herzegovina — a toolkit, if a fragmented one. A project needs an **environmental permit** and, often, an **EIA**, carrying a **consultation requirement** whose breach is a real legal ground — the very ground that annulled the dam permits at Krušnica. The **courts** can annul a defective permit. Bosnia is a party to the **Aarhus Convention** — information, participation, and access to justice — and the **Bern Convention** on habitats and species. Protest, petition, and litigation are lawful. The blockade bought the time; a patient legal challenge turned it into a permanent win, amplified by a wider river-defence movement and international allies a lone village could never command. But these tools have real limits, and this guide states them plainly. The win took an **extraordinary, sustained sacrifice** — five hundred days on a bridge, police violence, injuries, arrests, fines, icy winters — that not every community can give. The victory came from the blockade **and** the court together, and even then the investor could **reapply**, so the villagers stayed vigilant. And it was won in a country of **fragmented, post-war governance** — split among entities and cantons, with weak institutions and a small-hydropower boom driven by subsidies that enrich connected investors — where the system is often tilted against the community. So aim for what these tools can deliver around a place worth defending, and be honest about the sacrifice it asks.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A small Bosnian hydro or development project needs its **environmental permit** and **EIA**, resting on a **consultation** it often skips; it can be **blocked physically** at the site to buy time; and its defective permit can be **struck**

down in court. Every one of those is a link you can grab — and the skipped consultation is often the weakest. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year — or five hundred days — on this, work out your real situation:

- **If the consultation was skipped or the permit defective, that's a real, proven legal ground** — it's what struck down the Krušnica dams.
- **If the works are about to start, a sustained physical presence can block them and buy the time the legal fight needs** — but weigh the sacrifice honestly.
- **If it harms a river, habitat, or protected species, Aarhus and the Bern Convention are real levers.**
- **If connected investors and weak, fragmented institutions are against you, expect a hard fight** — pair the blockade with the court case and the wider movement, and stay vigilant, because the investor can reapply.

Read the whole guide once before you move. Two habits run through it: **pair a shared, sustainable stand with a patient legal challenge** — the blockade buys time, the court makes it permanent — and **reach beyond the village** to the movement and the world. That's how Krušnica won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

A project needs an **environmental permit** and, often, an **EIA**, issued by the relevant entity or cantonal authority — governance is split, so which body decides depends on where you are. A **consultation** with the affected community is required, and its breach is a real ground. Sector bodies grant the concession or water rights. The **courts** review and can annul a defective permit. And international conventions — **Aarhus** and **Bern** — bind the state. Know which permit and which body you're dealing with, and aim there.

How a Project Moves — and Where You Jump In

The EIA and consultation. The project needs its EIA and a genuine consultation. *Your opening — the one that won Krušnica:* a **skipped or inadequate consultation** is a strong legal ground to strike the permit.

The permit. The authority issues the environmental (and construction) permit. *Your opening:* a defective permit can be annulled in court.

Site works and construction. *Your opening — the distinctive Bosnian one:* a sustained physical presence at the site can block the machines and buy time for the court case.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — the investor, often connected, and any subsidies or financiers driving the small-hydro boom. **What it still needs** — the permit not final or under challenge, the consultation not done, the site not secured: whatever's missing is the soft spot. **What river, habitat, or protected species it harms** — because that engages Aarhus and the Bern Convention.

Who's Supposed to Be Watching

Each is an ally or an arena. The **entity/cantonal authority** issues and can be challenged over the permit. The **courts** annul defective permits — as they did at Krušica. **Aarhus** protects information, participation, and access to justice; the **Bern Convention** protects habitats and species. And Bosnia's — and the Balkans' — **river-defence movement, environmental organisations, and international allies** are the forces that reach furthest, amplifying a small village's stand.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the consultation was skipped or the permit defective, whether the community can sustain a stand, and how connected the investor is.

What you do	Roughly works	How long	Cost/Sacrifice	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections / demand consultation	15–35%	during permitting	low	On record; a ground for court
Court challenge (skipped consultation / permit)	35–60%	months–2 yr	mod	Permit annulled (Krušica)
Sustained site blockade	30–55%	months+	very high	Works blocked; time bought
Aarhus / Bern Convention	25–50%	months–yr	low	Rights enforced; halt urged
Wider movement + international attention	30–55%	months–yr	low	Amplified pressure; investor deterred
Everything together (skipped consultation, blockade + court)	45–65%	1–2 yr	high	Permit struck; project stopped
Everything together (connected investor, no blockade)	20–45%	1–2 yr	mod	Delayed; sometimes annulled

The levers that move the needle most are the **court challenge to a skipped consultation or defective permit** and a **sustained site blockade** — the two together, as at Krušica — amplified by the movement and the world. Krušica shows the ceiling (two dams struck down and stopped) and the honest floor (five hundred days of sacrifice, and the investor could reapply). So aim for a permit annulled, a project stopped, delay, and a place defended — and weigh the sacrifice honestly.

On cost and sacrifice: objecting, documenting, and litigating are cheap, and Aarhus makes the courts reachable; but a blockade costs an extraordinary, sustained sacrifice — five hundred days, police violence, arrests, winters. Don't pretend the method is easy: Krušica's win was extraordinary because the sacrifice behind it was. Plan any blockade collectively, share the burden, and be honest with your community about what it asks.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this skipped consultation, this defective permit, this threatened river — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the investor (often connected), and the subsidies or financiers behind it.

2. Where is it, and what does it touch? Map it over your **river and drinking water**, habitats, and protected species. **Your river and drinking water are your sharpest, most unifying cause** — Krušica fought for the water it drinks.

3. What stage is it at, and what's the next deadline — and which body decides? Is the EIA or permit being processed (and by which entity or canton)? Was consultation skipped (the winning ground)? Are works about to start (the moment to consider a stand)? These openings are time-bound.

4. What does it still need that it lacks? The permit not final, the consultation not done, the site not secured. The missing piece is the soft spot.

5. Can your community sustain a stand, and who's your wider movement? The whole village, sharing the burden; and the river-defence movement and international allies. Krušica shared the watch and reached the world.

What this looks like in real life. A village learns an investor will dam its drinking-water river, with a permit rushed through and no real consultation. The five questions yield: a connected investor and subsidies; the river and drinking water at stake (the cause); a skipped consultation (the legal ground); works about to start; and a community that must decide whether it can hold the ground, joined to the movement. That's the Krušica pattern — challenge the permit on the skipped consultation, hold the ground if you can, and reach the world.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and at Krušica the decisive proof was the skipped consultation. Build it in three layers.

Layer one: the paper trail. Get the documents the permit rests on — the environmental permit and EIA, the consultation record (or its absence), the concession and water rights, the investor's records. Then read them for flaws — above all a **skipped or inadequate consultation**, plus an understated impact on the river and water. Use **Aarhus** information rights to force out what's hidden.

Layer two: the ground truth. Dated, located photographs and video of the river, the drinking-water source, and the habitats — baseline images before any damage most of all — and the testimony of residents. Marshal the evidence on protected species and habitats for the Bern Convention.

Layer three: the map of river and harm. Lay the project over your river, drinking-water source, and habitats, so the harm — and the community that was never consulted — is undeniable. Walking into the authority, the courts, or the world with the skipped consultation, the EIA flaws, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The permit and EIA, the consultation record (or its absence), the concession and water rights** — from the entity/cantonal authority; force out the rest under Aarhus (8A).
- **Which body decides** — since governance is split, identify the right entity or canton.
- **Ownership, subsidies, and financing** — the investor and the subsidies driving the boom.

- **The river-and-harm map** — your river, drinking-water source, and habitats, laid over the project.
- **Dated site evidence, species evidence, and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a community that stands together — and shares the burden — gives you power. Build in four moves.

Unite the whole village. Krušnica's strength was the whole community, decided and acting together, with the burden shared so no one stood alone.

Share a sustainable stand. If a blockade is warranted, plan it so the burden is shared and sustainable — women on the day watch and men on the nights, as Krušnica did, so no single person can be picked off or worn down. Plan it collectively, with legal advice, and non-violently, and be honest about the sacrifice.

Pair the stand with a legal team. The blockade buys time; the **court case** makes the win permanent. Bring in lawyers early to challenge the permit on the skipped consultation, and to invoke Aarhus and the Bern Convention.

Reach the movement and the world. Krušnica drew in the wider **Balkan river-defence movement** and an international audience that a lone village could never command, turning one small river into a cause watched across Europe. Reach the movement and the international networks — solidarity amplifies your stand and deters the investor.

STEP 4: LEGAL CHALLENGES, THE BLOCKADE & THE COURTS

Bosnia's sharpest levers are the court challenge to a defective permit and, distinctively, a sustained physical stand — the two together.

The Court Challenge — Strike the Skipped Consultation

The route that won Krušnica: challenge the **environmental and dam permits in court**, above all on a **skipped or inadequate consultation** with the affected community — a real, proven legal ground here — and on a defective EIA. A court can **annul** the permit, as it did at Krušnica, turning the time a blockade buys into a permanent win. Use **Aarhus** rights to force out information and secure your standing.

The Blockade — Holding the Ground

The distinctive Bosnian lever: a sustained, non-violent **physical presence at the site** that blocks the machines and buys the time the court case needs. Krušnica held the bridge for five hundred days. Plan it collectively, share the burden sustainably, get legal advice, and be honest with your community about the extraordinary sacrifice it asks — it is powerful, but it is hard.

Aarhus, the Bern Convention, and the Movement

Invoke **Aarhus** (information, participation, access to justice) to secure your rights and reach the courts, and the **Bern Convention** where a protected habitat or species is threatened. And draw in the wider **river-defence movement** and international allies, whose attention amplifies your stand and pressures the investor and the authorities.

The Honest Limits

Straight talk: the court challenge and the blockade are powerful together, but the blockade asks an extraordinary sacrifice, the win took the two together, the investor can reapply, and the fragmented, subsidy-driven system is tilted against you. So use the strong tools — the court challenge on the skipped consultation, the blockade, Aarhus and Bern, the movement — pair them, stay vigilant, and count a permit annulled, a project stopped, delay, and a river defended as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A skipped consultation becomes an annulment. Not "we oppose the dam" but *"the community was never properly consulted — the permit is unlawful and must be struck down,"* as at Krušica.

The river becomes a right and a cause. *"This is our drinking water — and a river the wider movement and the world are watching."*

A protected species becomes a treaty case. *"This harms a habitat the Bern Convention protects."*

The stand becomes a story. *"A village of women who held a bridge for five hundred days to save the water they drink."*

Match it to the venue: the skipped consultation and permit to the courts; the information and standing to Aarhus; the habitat to the Bern Convention; the stand and the river to the movement and the world.

STEP 5: MEDIA STRATEGY

In Bosnia, international attention and the river-defence movement amplify a small village's stand far beyond what it could command alone — Krušica became a cause watched across Europe. A free press and a strong regional movement make the media front central.

Lead with the water and the stand, not procedure. Not "the consultation was inadequate" but "a village of women holding a bridge for five hundred days to save the water they drink." Use your strongest material: the story of the stand, dated photographs, the river, and any court win banked.

Work several audiences at once. Local and national press build domestic pressure; the Balkan river-defence movement and international networks turn one small river into a cause and pressure the investor and the financiers. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — plan any stand with legal advice, share the burden, and let the community lead its own story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Aarhus information request (to the authority).

Subject: Information request — [project].

"Under the Aarhus Convention, we, residents of [place], request the environmental permit and EIA, the consultation record, and the concession and water rights for [project] on [river]. [Contact.]"

8B — Objection / demand for consultation.

Subject: Objection — [project] on [river].

"We, residents of [place], object to [project] and record that we were never properly consulted: [specifics]. It threatens our drinking water and [river/habitat]. We ask that the permit be refused or annulled. [Attach evidence.]"

8C — Court challenge (to a lawyer).

Subject: Challenge — [project] permit.

"We instruct you to challenge the environmental and dam permits for [project], above all on the skipped consultation and the defective EIA, and to invoke our Aarhus rights. [Attach the permit and our evidence.]"

8D — To the Bern Convention (protected habitat/species).

Subject: Threat to [habitat/species] — [project].

"We report that [project] on [river] threatens [a protected habitat/species] contrary to the Bern Convention, and ask the committee to act. [Attach evidence.]"

8E — To the river-defence movement / an organisation.

Subject: Dam threatening our drinking-water river — [project].

"Our village faces [project] damming [river], our drinking water, with the community never consulted. We plan to challenge the permit and, if needed, hold the ground. We ask for your solidarity and help, as the movement gave Krušica. [Contact and evidence summary.]"

8F — To the investor / financier.

Subject: Legal and reputational risk in [project].

"We are the community affected by [project] on [river]. It was permitted without proper consultation, threatens our drinking water, and faces legal challenge and sustained opposition. As at Krušica, this carries real risk. [Contact and evidence summary.]"

8G — Letter to the (international) press.

Subject: [Village] acts to protect its river and drinking water from [project].

"For generations the people of [place] have drunk from [river]. Now [project] threatens it — and we were never consulted. We can provide the story of our stand, photographs, and interviews. [Contact.]"

8H — Uniting and sustaining the community.

Subject: Our water is worth it — let's stand together.

"[Project] threatens the river we drink. At Krušica, a village shared the watch — women by day, men by night — held a bridge for five hundred days, and won in court. If we unite, share the burden, and challenge the permit, we can defend our water too. Please stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the skipped or inadequate consultation — that's the winning legal ground.**
2. **Object and demand consultation (8B), and request the documents under Aarhus (8A).**
3. **Get a lawyer to challenge the permit (8C), invoking Aarhus and Bern.**
4. **If works are starting, consider a planned, shared, non-violent stand — honestly weighing the sacrifice.**
5. **Photograph everything, with dates and places, and gather habitat/species evidence.**
6. **Reach the river-defence movement and the world (8E/8G).**

Even lean, those six pair the court challenge to the stand and the movement — the Krušica template.

WHEN THE SYSTEM IS TILTED

Bosnia's tools are real, but the fragmented, subsidy-driven system tilts the field, and you must plan for it.

When institutions are weak and fragmented. Identify the right entity or canton, and lean on the courts and Aarhus, which reach across the fragmentation.

When the investor is connected and subsidised. Don't fold: strike the skipped consultation in court, hold the ground if you can, and reach the movement and the world, where the connection doesn't protect them.

When the sacrifice of a blockade is too much. Be honest — not every community can give five hundred days. Lean harder on the court challenge, Aarhus, and the movement, and hold the ground only as far as your community truly can, sustainably.

When the investor reapplies. Krušica's win didn't end the threat forever. Stay vigilant, keep the coalition and the documentation ready, and be prepared to challenge a new permit.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Bosnia has serious, documented problems with the capture of the small-hydro boom by connected investors and subsidies, so this matters.

How to spot it. Permits rushed without consultation; subsidies enriching connected investors; EIAs written for the proponent; benefits to the connected while villages lose their water.

Who's supposed to guard against it. Audit and anti-corruption bodies examine public money and conduct. The **courts** can annul a tainted permit. **Aarhus** forces out the hidden record. And Bosnia's — and the Balkans' — **press, river-defence movement, and civil society** have exposed the captured hydro boom.

How to fight it safely. Document precisely and factually — the skipped consultation, the subsidies, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the audit and anti-corruption bodies, the courts, and trusted journalists rather than making accusations you can't back. Pair the exposure with the court challenge and the movement.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents and the skipped-consultation proof build your case; the river aims it; a united community sharing the burden is the muscle; the court challenge and the blockade press it together; Aarhus and Bern and the movement amplify it. Together they multiply. One at a time, they stall — and stay vigilant, because the investor can reapply.

Early on (weeks 1–8): nail down the skipped consultation and the harm; object and demand consultation; request the records under Aarhus; get a lawyer; unite the community and reach the movement.

In the thick of it (months–year+): challenge the permit in court; if works begin, hold a planned, shared, sustainable stand; invoke Bern; open the international media front.

The long haul (year+): carry the court case to annulment; keep the coalition and the movement alive; hold the line for a permit struck, a project stopped, delay — and stay vigilant against a new permit.

FINAL ASSESSMENT

Stopping a destructive project in Bosnia and Herzegovina can be done — a village of women held a bridge for five hundred days and struck down two dams in court, to save the water they drink. Hold both truths. Bosnia's distinctive power is real: a community standing physically in the way and taking a flawed permit to court, backed by a river-defence movement and the world, can stop a project even against connected investors and weak institutions. And the constraints are real: an extraordinary sacrifice, a win that took the blockade and the court together, an investor who can reapply, and a fragmented, subsidy-driven system tilted against the community.

Here's the discipline that wins. Find the weakest link — usually the **skipped or inadequate consultation** — and challenge the permit on it in court, invoking Aarhus and the Bern Convention, to annul it permanently. If the machines arrive, consider a **planned, shared, sustainable, non-violent stand** to hold the ground and buy the court case its time — but be honest with your community about the sacrifice, and share the burden as Krušnica did, women and men in turns. Reach the river-defence movement and the world, so a small village's stand becomes a cause. Stay vigilant, because the investor can reapply. Count a permit annulled, a project stopped, delay, and a river defended as wins. That's what the Brave Women of Krušnica did — the stand and the court together, amplified by the world. So can you.